

		3. MOTION TO COMPEL RESPONSE TO REQUESTS FOR ADMISSIONS Defendant AMF Bowling Centers Inc.’s motion to deem matters set forth in Defendant’s Requests for Admission to plaintiff TC Brothers Enterprises, Inc. dba Servpro of Walnut, Hacienda Heights, Rowland Heights admitted, is DENIED as MOOT. Plaintiff served verified responses without objections to Defendant’s Requests for Admission, Set One, on December 8, 2025. (Reed Decl., ¶ 9.) Thus, the Motion is moot. Defendant’s request for sanctions is DENIED. Plaintiff has shown it acted with substantial justification in submitting responses in a timely manner after counsel had a personal emergency. Moving Defendant to give notice.
3.	CALVILLO VS. VILLEGAS 2025-01471415	1. MOTION TO COMPEL FURTHER RESPONSES TO FORM INTERROGATORIES Defendants Germaine Y. Ninete and Serissa Frankee Ninete Villegas’ motion to compel Plaintiff Daniel Rico Calvillo to provide a further, verified response to Defendants’ Form Interrogatories, Set One, Nos. 2.7, 6.7, 7.1, 7.2, 10.3, and 20.11 is GRANTED. <u>Form Interrogatory No. 2.7:</u> Form Interrogatory No. 2.7 seeks (a) the name and address of each school or other academic or vocational institution Plaintiff attended beginning with high school; (b) the dates attended; (c) the highest grade level completed; and (d) the degrees received. Plaintiff objected to the interrogatory on the grounds that it seeks irrelevant information, is not reasonably calculated to lead to discovery of admissible evidence, seeks information equally available to Defendants and invades Plaintiff’s right to privacy. The burden is on the responding party to justify any objection or failure fully to answer the interrogatories. (<i>Coy v. Sup.Ct. (Wolcher)</i> (1962) 58 Cal.2d 210, 220-221; <i>Fairmont Ins. Co. v. Sup.Ct. (Stendell)</i> (2000) 22 Cal.4th 245, 255.) Plaintiff has not filed an opposition and failed to justify the objections. Therefore, the request to compel a further response to Form Interrogatory No. 2.7 is GRANTED. <u>Form Interrogatory No. 6.7:</u> Form Interrogatory No. 6.7 asks if any health care provider advised Plaintiff that he may require future or additional treatment for any injuries that he attributes to the incident? If so, for each injury the

interrogatory asks Plaintiff to state: (a) the name and address of each health care provider; (b) the complaints for which the treatment was advised; (c) the nature, duration, and estimated cost of the treatment.

Plaintiff responded by asserting objections and subject to the objections stating, “Troy Mounts, M.D.– Recommendation for posterior lumbar decompression from L4-S1.” Plaintiff’s response fails to provide the address of the health care provider, complaints for which the treatment was advised, and the nature, duration, and estimated cost of the treatment.

As to the objections, Plaintiff has not filed an opposition and failed to justify the objections.

Therefore, the request to compel a further response to Form Interrogatory No. 6.7 is GRANTED.

Form Interrogatory No. 7.1:

Form Interrogatory No. 7.1 asks if Plaintiff attributes any loss of or damage to a vehicle or other property to the incident and if so to: (a) describe the property; (b) describe the nature and location of the damage to the property; (c) state the amount of damage you are claiming for each item of property and how the amount was calculated; and (d) if the property was sold, state the name, Address, and telephone number of the seller, the date of sale, and the sale price.

Plaintiff responded by objecting and subject to the objections stating “Yes. Plaintiff will provide any and all documents to date pertaining to property damage and evaluation(s).” Plaintiff’s response is incomplete since it fails to provide a response to subdivisions (a)-(d) of the interrogatory.

Therefore, the request to compel a further response to Form Interrogatory No. 7.1 is GRANTED.

Form Interrogatory No. 7.2:

Form Interrogatory No. 7.2 asks if a written estimate or evaluation has been made for any item of property referred to in Form Interrogatory No. 7.1 and if so for each estimate or evaluation: (a) the name, ADDRESS, and telephone number of the PERSON who prepared it and the date prepared; (b) the name, ADDRESS, and telephone number of each PERSON who has a copy; (c) the amount of damage stated.

Plaintiff responded by objecting and subject to the objections stating, “Plaintiff doesn’t know anything about the car, because the registered owner was his uncle, who took care of it.”

Plaintiff’s response fails to comply with Code of Civil Procedure 2030.220 section (c) which states, “If the responding party does not

have personal knowledge sufficient to respond fully to an interrogatory, that party shall so state, but shall make a reasonable and good faith effort to obtain the information by inquiry to other natural persons or organizations, except where the information is equally available to the propounding party.”

As to the objections, Plaintiff has not filed an opposition and failed to justify the objections.

Therefore, the request to compel a further response to Form Interrogatory No. 7.2 is GRANTED.

Form Interrogatory No. 10.3:

Form Interrogatory No. 10.3 asks if at any time after the incident, Plaintiff sustained injuries and if so, for each incident giving rise to an injury state: (a) the date and the place it occurred; (b) the name, address, and telephone number of any other person involved; (c) the nature of any injuries you sustained; (d) the name, address, and telephone number of each health care provider who you consulted or who examined or treated you; and (e) the nature of the treatment and its duration.

Plaintiff objected to the interrogatory without providing a substantive response. Plaintiff has not filed an opposition and failed to justify the objections.

Therefore, the request to compel a further response to Form Interrogatory No. 10.3 is GRANTED.

Form Interrogatory No. 20.11:

Form Interrogatory No. 20.11 asks for the name, address, and telephone number of each owner and each person who has had possession since the incident of each vehicle involved in the incident.

Plaintiff responded by objecting and subject to the objection states, Plaintiff’s car’s registered owner was his uncle, Plaintiff returned the car to the owner right after the Incident.

Plaintiff’s response is inadequate since it states Plaintiff’s uncle is the owner but fails to provide the uncle’s name, address, and telephone number. Plaintiff’s response fails to comply with Code of Civil Procedure 2030.220.

Therefore, the request to compel a further response to Form Interrogatory No. 20.11 is GRANTED.

Plaintiff is ordered to provide further responses to Form Interrogatory Nos. 2.7, 6.7, 7.1, 7.2, 10.3, and 20.11 within 20 days of the notice of this ruling.

Plaintiff is ordered to pay \$804 in sanctions to Defendants within 20 days of the notice of this ruling.

Moving Defendants to give notice.

2. MOTION TO COMPEL FURTHER RESPONSES TO SPECIAL INTERROGATORIES

Defendants Germaine Y. Ninete and Serissa Frankee Ninete Villegas's motion to compel Plaintiff Daniel Rico Calvillo to provide a further, verified response to Defendants' Special Interrogatories, Set One, No. 5, is GRANTED.

Code of Civil Procedure section 2030.300 provides in pertinent part: "(a) On receipt of a response to interrogatories, the propounding party may move for an order compelling a further response if the propounding party deems that any of the following apply: [¶] (1) An answer to a particular interrogatory is evasive or incomplete. [¶] (2) An exercise of the option to produce documents under Section 2030.230 is unwarranted or the required specification of those documents is inadequate. [¶] (3) An objection to an interrogatory is without merit or too general."

Defendants move to compel a further response to Special Interrogatory No. 5 which asks Plaintiff to "State the total amount of medical expenses billed for treatment incurred as a result of this INCIDENT."

Plaintiff responded to the interrogatory by objecting and subject to the objections stating, "Will provide all medical bills to date."

The burden is on the responding party to justify any objection or failure fully to answer the interrogatories. (*Coy v. Sup.Ct. (Wolcher)* (1962) 58 Cal.2d 210, 220-221; *Fairmont Ins. Co. v. Sup.Ct. (Stendell)* (2000) 22 Cal.4th 245, 255.) Plaintiff has not filed an opposition and failed to justify the objections.

To the extent Plaintiff seeks to exercise the option to produce medical bills pursuant to Code of Civil Procedure section 2030.230, Plaintiff has failed to comply with the requirements of section 2030.230 which provides that "If the answer to an interrogatory would necessitate the preparation or the making of a compilation, abstract, audit, or summary of or from the documents of the party to whom the interrogatory is directed, and if the burden or expense of preparing or making it would be substantially the same for the party propounding the interrogatory as for the responding party, it is a sufficient answer to that interrogatory to refer to this section and to specify the writings from which the answer may be derived or ascertained. This specification shall be in sufficient detail to permit the propounding party to locate and to identify, as readily as the responding party can, the documents from which the answer may be ascertained."

		Therefore, the request to compel a further response to Special Interrogatory No. 5 is GRANTED. Plaintiff is ordered to provide a further response to Special Interrogatory No. 5 within 20 days of the notice of this ruling. Plaintiff is ordered to pay \$711 in sanctions to Defendants within 20 days of the notice of this ruling. Moving Defendants to give notice.
4.	PRIMARY CARE ASSOCIATES OF CALIFORNIA, INC. VS. BZ HEALTH NETWORK OF CALIFORNIA, INC. 2025-01451241	1. MOTION TO COMPEL FURTHER RESPONSES TO SPECIAL INTERROGATORIES Defendants BZ Health Network of California, Inc. and BZ Health of California’s Motion to Compel Further Responses to Special Interrogatories is DENIED as moot. Defendants’ request for sanctions is DENIED. Plaintiff’s objections are overruled. Plaintiff served further responses on January 8, 2026 which substantively changed the responses. Thus, Defendants’ motion is moot. <u>Sanctions</u> “The court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a further response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., § 2030.300(d).) The Court finds Plaintiff acted with substantial justification in opposing the Motion. 2. MOTION TO COMPEL PRODUCTION Defendants BZ Health Network of California, Inc. and BZ Health of California’s Motion to Compel Further Responses to Requests for Production is DENIED as moot. Defendants’ request for sanctions is DENIED. Plaintiff’s objections are overruled. Plaintiff served further responses on January 8, 2026 which substantively changed the responses. Thus, Defendants’ motion is moot.